

Form No: HCJD/C-121
ORDER SHEET.
IN THE ISLAMABAD HIGH COURT, ISLAMABAD.
JUDICIAL DEPARTMENT.

Writ Petition No.1718 of 2024

Mst. Tasneem Fatima.

VS

Federal Investigating Agency (F.I.A.) and another.

S. No. of order/ proceedings	Date of order/ Proceedings	Order with signature of Judge and that of parties or counsel where necessary.
01.	31.05.2024	Mr. Muhammad Usman Sami, Advocate for the petitioner.

Through the instant petition, the petitioner has challenged call-up notice dated 26.05.2024, issued by F.I.A., Cyber Crime Circle, Islamabad under Section 160 Cr.P.C. regarding the alleged involvement of the petitioner in online harassment / blackmailing and the petitioner has been directed to appear before F.I.A. on 31.05.2024 at 12:00 P.M.

2. Learned counsel for the petitioner, *inter-alia*, contends that under Rule 3 of the National Cyber Crime Investigation Agency (Establishment, Powers and Functions) Rules, 2024, the F.I.A. has been directed not

to exercise the powers under the cybercrime and it is mentioned in the Rule 3 of the Rules (ibid) that:

“(1) there shall hereby stand established the National Cyber Crime Investigation Agency (NCCIA) to exercise jurisdiction under the Act and the Federal Investigation Agency (F.I.A.) shall cease to perform functions as designated investigation agency under the Act.

(2) All personnel, cases, inquiries, investigations, assets, liabilities, rights, obligations, privileges and matters related thereto or connected therewith subsisting immediately before commencement of these rules in respect of the defunct cyber crime wing of the F.I.A. shall stand transferred to the NCCIA.”

So in view of the latest enactment the F.I.A. cannot exercise the powers; impugned notice is erroneous, illegal and not tenable under the law, hence the same is liable to be set-aside.

3. Points raised, need consideration.
Notice to the respondents. Respondent No.1 / Director General, F.I.A. is directed to depute a senior law knowing officer, well

conversant with facts of the case to appear, in person, alongwith record in order to assist the Court on the next date of hearing.

4. Re-list on **04.06.2024.**

C.M. No.01 of 2024.

Exemption sought for is allowed subject to all just and legal exceptions.

C.M. No.02 of 2024.

Notice. Meanwhile, operation of the impugned notice dated 26.05.2024, is suspended. Restraining order shall cease to exist and expire automatically, if not extended specifically on the next date of hearing.

(TARIQ MEHMOOD JAHANGIRI)
JUDGE